

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3678

By: Provenzano

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 1176, as last amended by Section 10, Chapter 452, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1176), which relates to the use of electronic communication devices to threaten, intimidate, or harass public officials; expanding protection for municipal officials and public school board members; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1176, as last amended by Section 10, Chapter 452, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1176), is amended to read as follows:

Section 1176. A. Whoever, with the intent to threaten, intimidate or harass, or facilitate another to threaten, intimidate or harass, uses an electronic communication device to knowingly publish, post or otherwise make publicly available personally identifiable information of a peace officer, public official, election official, medical care provider, or crime victim, and as a result places that peace officer, public official, election official, medical care provider, or crime victim in reasonable fear

1 of death or serious bodily injury shall, upon conviction, be guilty
2 of a misdemeanor punishable by imprisonment in the county jail for a
3 term not to exceed six (6) months, or by a fine not to exceed One
4 Thousand Dollars (\$1,000.00), or by both such fine and imprisonment.
5 Upon conviction for a second or subsequent violation, the person
6 shall be punished by imprisonment in the county jail for a term not
7 to exceed one (1) year, or by a fine not to exceed Two Thousand
8 Dollars (\$2,000.00), or by both such fine and imprisonment.

9 B. To the extent the provisions of Section A apply to medical
10 care providers, the protections provided herein shall not apply when
11 the incident is unrelated to the provider's professional duties.

12 C. As used in this section:

13 1. "Crime victim" shall have the same meaning as defined in
14 Section 142A-1 of this title;

15 2. "Election ~~Official~~ official" means a member or employee of
16 the State Election Board or a county election board, the Secretary
17 of the State Election Board or a county election board, or a person
18 serving as a precinct official or absentee voting board member
19 appointed as required by law;

20 3. "Electronic communication" shall have the same meaning as
21 defined in Section 1172 of this title. Electronic communication
22 does not include broadcast transmissions or similar communications
23 that are not targeted at any specific individual;

1 4. "Electronic communication device" means any cellular
2 telephone, facsimile, pager, computer, or any device capable of
3 electronic communication;

4 5. "Medical care provider" means a doctor, resident, intern,
5 nurse, nurse practitioner, nurses' aide, ambulance attendant or
6 operator, paramedic, emergency medical technician, laboratory
7 technician, radiologic technologist, physical therapist, physician
8 assistant, chaplain of a health care facility, volunteer of a health
9 care facility, pharmacist, nursing student, medical student, member
10 of a hospital security force, and any other employee or contractor
11 working in or for a health care facility;

12 6. "Peace officer" shall have the same meaning as that term is
13 defined in Section 99 of this title;

14 7. "Personally identifiable information" means information
15 which can identify an individual including but not limited to name,
16 birth date, place of birth, mother's maiden name, biometric records,
17 Social Security number, official state- or government-issued driver
18 license or identification number, government passport number,
19 employer or taxpayer identification number or any other information
20 that is linked or linkable to an individual, such as medical,
21 educational, financial or employment information;

22 8. "Public official" means any person elected or appointed to a
23 state office in the executive, legislative, or judicial branch of
24 state government or other political subdivision of the state,

1 including any person elected or appointed to a municipal office,
2 authority, board or commission, or public school board member; and

3 9. "Publish" means to circulate, deliver, distribute,
4 disseminate, transmit, or otherwise make available to another
5 person.

6 SECTION 2. This act shall become effective November 1, 2026.
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